



DEPARTMENT OF PUBLIC SAFETY

Executive Director's Office, Office of School Safety

SCHOOL ACCESS FOR EMERGENCY RESPONSE (SAFER) GRANT PROGRAM

8 CCR 1507-70

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

1. Authority

This regulation is adopted pursuant to the authority in C.R.S. § 24-33.5-2104 and is intended to be consistent with the requirements of the State Administrative Procedures Act, C.R.S. § 24-4-101 et seq. (the "APA").

2. Scope and Purpose

This regulation shall govern the implementation of the School Access for Emergency Response (SAFER) Grant Program, which includes the time frames for applying for these grants, the form of the grant program application, and the time frames for distributing grant funds.

3. Applicability

The provisions of these rules shall be applicable to all eligible applicants and recipients of grant funds as provided by law.

4. Definitions

"School" means a school district, public school within a school district, local educational agency (LEA), charter school authorized by a school district pursuant to part 1 of article 30.5 of title 22, charter school authorized by the state charter school institute pursuant to part 5 of article 30.5 of title 22, or board of cooperative services created and operating pursuant to article 5 of title 22 that operates one or more public schools.

"Recipient" means an eligible applicant receiving an award.

"Award" means financial assistance grant that provides support to accomplish a public purpose given by the state to an eligible recipient.

"Period of Performance" means the period of time during which the recipient is required to complete the grant activities and to receive and expend approved funds.

"Memorandum of understanding" means an agreement between two or more parties that is not legally binding to formalize a working relationship.

"Crisis Management Plan" means a plan including tactical strategies and actions for responding to an emergency.

"Interoperability" means the ability of one or more radio systems to communicate with another radio system and other communications devices.

"Interoperable Technology" means software and/or hardware that enables two different radio systems and other devices to communicate, exchange data and use the information which has been exchanged.

"Other Communications Network" means any public or private wire or wireless communications network that allows for real-time voice or data communications between a public safety 911 answering point, schools, and first responders.

"Radio System" means a private network for voice communications.

"Safety Teams" means personnel who have role in crisis management plans.

5. Program Requirements

5.1 Eligibility

- A. The applicant must be a school or a public safety communications system owner in order to apply.
- B. Eligible school applicants are required to have a memorandum of understanding with any of its regional public safety 911 answering points or the local law enforcement agency or agencies which serve the school for communications interoperability to be eligible to apply.
- C. Eligible applicants must submit an application developed by the Office of School Safety Grants Management Office in conformance with the application and the terms of the program guidance described below.
- D. The grant funds may only be used for the following purposes:
 - 1. To deliver training programs to teach district-based security personnel and appropriate school personnel basic procedures for effective communications with first responders during an emergency;
 - 2. To implement an interoperable technology solution to provide or to upgrade the following:
 - a. A system or technology that can be activated and deactivated by the public safety 911 answering point, the network administrator, and the school, using both the radio system and other communications networks;
 - b. Radio and other technology bridge ability that is not radio vendor specific for connecting independent school networks across the school district and public safety networks in the regions; and
 - c. An interoperability solution that operates over radio networks and other communications networks;
 - 3. To maintain or improve a school's existing interoperable communication hardware or software or to provide interoperable communication hardware and/or software to a school that does not yet have it; and
 - 4. For any necessary radio system capacity expansions where school loading has been determined to have significant impact on public safety system loading.
- E. The grant agreement between the State and the recipient(s) of the grant program will specify additional requirements, including, but not limited to: performance measures, reporting requirements, and monitoring of recipient's activities and expenditures.

- F. Additionally, the following criteria will be evaluated in awarding any grant:
1. The likelihood that funding of the application will improve communications between the school and first responder communication systems;
 2. The extent to which the school is fully compliant with the Colorado School Response Framework pursuant to sections 22-32-109.1 (4) or 22-30.5-503.5, C.R.S.; and
 3. Whether the school has a crisis management plan in place with safety team members designated for communications with first responders.

5.2 Award Details

- A. Period of Performance: 6 months for Year 1; 12 months for Year 2 - Year X (see below)
- B. Funding Instrument: Discretionary Grant (Upon legislation designated funding)

5.3 Time Frames for Application

A. Time Frames

Year 1:

Application Submission Deadline:	December 3, 2018; 5:00 PM MST
Grant Awarded to Applicants Deadline:	December 31, 2018
Grant Fund Distribution Deadline:	January 30, 2019
Period of Performance – 6 months:	December 31, 2018 – June 30, 2019

Year 2 - Year X (2019 - 20XX):

Application Submission Deadline:	May 15, 20XX; 5:00 PM MST
Grant Awarded to Applicants Deadline:	July 1, 20XX
Grant Fund Distribution Deadline:	August 1, 20XX
Period of Performance – 12 months:	July 1, 20XX – June 30, 20XX

B. Restrictions

1. Applications that are not submitted by the stated Application Submission Deadline will not be reviewed or considered for funding.
2. Pre-Award Costs are NOT allowed under this program (costs incurred or work completed prior to the award date).

5.4 Application Submissions

- A. Applicants can submit their signed application via U.S. mail or via email as listed in the grant application.

5.5 Grant Guidance

The Executive Director's Office, Office of School Safety is responsible for the implementation of this grant program and will develop and publish a grant application and guidance.

Editor's Notes

History

New rule eff. 11/30/2023.